

MyHOAAppeal - Educational worksheet

State HOA Law Basics Every Homeowner Should Know

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about how state acts interact with private covenants. Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of how state acts interact with private covenants.
- * Make the decision point explicit: Your appeal should answer whether state law adds protections beyond CC&Rs with exhibits, or not.
- * Compare options deliberately: Know whether you are closer to Planned community act, Condo act, or General corporation law.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to how state acts interact with private covenants.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about how state acts interact with private covenants. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on how state acts interact with private covenants.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to whether state law adds protections beyond CC&Rs.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around how state acts interact with private covenants.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to whether state law adds protections beyond CC&Rs, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to how state acts interact with private covenants
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address whether state law adds protections beyond CC&Rs
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether planned community act or condo act better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing how state acts interact with private covenants arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control whether state law adds protections beyond CC&Rs.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on how state acts interact with private covenants; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around how state acts interact with private covenants.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on how state acts interact with private covenants. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering how state acts interact with private covenants?

- Yes - I have notices or governing excerpts -> go to quality

- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run

this tree for how state acts interact with private covenants. Do not rely on memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about how state acts interact with private covenants.

Q (quality): Does your packet clearly address whether state law adds protections beyond CC&Rs?

- Yes - defects and facts are indexed -> go to deadline

- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue how state acts interact with private covenants. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on how state acts interact with private covenants, and request a hearing or written decision in the same letter.

- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve how state acts interact with private covenants arguments even while clarifying timing.

- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Planned community act | Condo act | General corporation law

Typical signal

[Planned community act] Clear written basis for planned community act

[Condo act] Partial or contested basis for condo act

[General corporation law] High risk if you only have general corporation law

Owner priority

[Planned community act] Preserve planned community act with indexed proof
[Condo act] Convert condo act into a documented record
[General corporation law] Do not rely on general corporation law alone
Board / manager reaction
[Planned community act] Harder to dismiss when exhibits are complete
[Condo act] May stall or ask for more information
[General corporation law] Often treated as insufficient without follow-up writing
Next educational move
[Planned community act] Advance the formal path for how state acts interact with private covenants
[Condo act] Send a clarifying letter addressing whether state law adds protections beyond CC&Rs
[General corporation law] Collect missing documents before arguing substance
Escalation risk if ignored
[Planned community act] Lower if you stay on deadline
[Condo act] Medium - ambiguity can harden into denial
[General corporation law] Higher - general corporation law gaps feed collections narratives

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